



CHAPTER xx

An Act to alter the limits of the port and harbour of Bristol and of the area within which the lord mayor aldermen and burgesses of the city of Bristol are entitled to exercise jurisdiction as a conservancy authority and as a local lighthouse authority and for other purposes. [27th July 1955.]

WHEREAS the city and county of Bristol (hereinafter referred to as "the city") is a county borough under the government of the lord mayor aldermen and burgesses of the city (hereinafter referred to as "the Corporation") acting by the council of the city:

And whereas the Corporation are the port authority of the port of Bristol and the harbour authority of the harbour of Bristol and are the conservators having jurisdiction in and the local lighthouse authority for an area co-terminous with the said port and harbour:

And whereas it is expedient that the limits of the port of Bristol and of the harbour of Bristol and of the area in which the Corporation have jurisdiction as conservators and as the local lighthouse authority should be altered as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective titles.

1.—(1) This Act may be cited as the Bristol Corporation Act 1955.

(2) The Bristol Dock Acts 1848 to 1951 and this Act may be cited together as the Bristol Dock Acts 1848 to 1955.

Interpretation.

2.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively (that is to say):—

“the Act of 1938” means the Bristol Corporation Act 1938;

“the city” means the city and county of Bristol;

“the Corporation” means the lord mayor aldermen and burgesses of the city acting by the council of the city.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Alteration of
limits of port
and harbour
of Bristol etc.

3.—(1) As from the first day of August one thousand nine hundred and fifty-five the limits of the port of Bristol and of the harbour of Bristol and of the area within which the Corporation are entitled to exercise jurisdiction as a conservancy authority and as a local lighthouse authority within the meaning of Part XI (Lighthouses) of the Merchant Shipping Act 1894 shall be extended to include the area described in Part I of the schedule to this Act (in this and the next succeeding section referred to as “the added area”) and thereafter shall consist of and comprise the area described in Part II of the said schedule (in this section referred to as “the limits of the Port”) in lieu of the area described in the Third Schedule to the Act of 1938 (in this section referred to as “the existing area”).

(2) All enactments conferring rights powers privileges and immunities or imposing duties obligations and liabilities upon the Corporation and all byelaws and regulations made by the Corporation which relate to or are in force in the existing area shall relate to and have effect in the limits of the port.

(3) Nothing in this Act shall affect the operation within the limits of the port of such of the provisions of the Harbours Docks and Piers Clauses Act 1847 as immediately before the passing of this Act were operative within the existing area and the said provisions shall extend and apply to the added area.

(4) The management of all lighthouses buoys and beacons within the added area (other than lighthouses buoys and beacons belonging to the Corporation of Trinity House Deptford Strond) shall be transferred to and vest in the Corporation and section 31 (Corporation to be local lighthouse authority) of the Act of 1938 shall have effect as if a reference to the limits of the port were substituted for the reference to the area described in the Third Schedule to the Act of 1938.

4.—(1) In this section—

“the commission” means the British Transport Commission;

“the undertakings” means the undertakings of the commission known as the Sharpness Docks the Gloucester and Sharpness Canal Gloucester Docks and Lydney Docks.

For protection
of British
Transport
Commission.

(2) Nothing in this Act shall authorise the Corporation or the harbour-master to designate generally any part of the added area as an area within which vessels navigating between the lower Bristol Channel and any of the undertakings shall be prohibited from mooring or shall be permitted to moor subject to restrictions (in this subsection referred to as a “special area”) unless the extent of the special area and the nature of the restrictions have been determined by agreement between the Corporation and the commission or failing such agreement by the Minister of Transport and Civil Aviation Provided that nothing in this subsection shall derogate from the powers of the harbour-master under section 52 of the Harbours Docks and Piers Clauses Act 1847 to give directions within any part of the added area other than a special area.

5. Nothing in this Act shall affect the limits of the port of Bristol appointed and declared by the Treasury under section 11 of the Customs Consolidation Act 1876.

As to customs
limits of port
of Bristol.

6. Within one month after the passing of this Act the Corporation shall give notice of the alteration of limits effected by section 3 (Alteration of limits of port and harbour of Bristol etc.) of this Act by advertisement in the London Gazette and in such other manner (if any) as they may deem expedient for causing such alteration to be made known to parties affected thereby.

Publication of
notice of
alteration of
limits of port
and harbour of
Bristol etc.

7. As from the first day of August one thousand nine hundred and fifty-five the Bristol Corporation Act 1951 shall have effect as if in the meaning assigned to the expression “the port” by section 4 (Interpretation) of that Act a reference to the area

Amendment of
Bristol
Corporation
Act 1951.

described in Part II of the schedule to this Act were substituted for the reference to the area described in the Third Schedule to the Act of 1938 and the amendments to the sections of the Bristol Corporation Act 1926 mentioned in sub-paragraph (i) of paragraph (c) of section 7 (Licences) of the said Act of 1951 shall be construed accordingly.

Repeal.

8. As from the first day of August one thousand nine hundred and fifty-five the following provisions of the undermentioned Acts shall be repealed:—

The Act of 1938—

Section 30 (Alteration of limits of port and harbour of Bristol etc.) ;

Subsection (3) of section 31 (Corporation to be local lighthouse authority) ;

Section 32 (Plan of limits of port of Bristol etc.) ;

Section 33 (As to customs limits of port of Bristol) ;

Section 34 (Publication of notice of alteration of limits of port and harbour of Bristol etc.) ;

The Third Schedule :

The Bristol Corporation Act 1950—

Section 55 (Amendment of Third Schedule of Bristol Corporation Act 1938).

Crown rights.

9. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

10. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the city.

SCHEDULE

PART I

ADDED AREA

An area bounded by an imaginary line commencing at the triangulation point near Ladye Point in the urban district of Clevedon in the county of Somerset and from thence drawn straight in a northerly direction to the point at which latitude $51^{\circ} 29' 30''$ North intersects longitude $2^{\circ} 52' 40''$ West thence straight in a north-easterly direction to the beacon on Denny Island (latitude $51^{\circ} 31' 30.264''$ North—longitude $2^{\circ} 46' 46.440''$ West) thence straight in a southerly direction to Portishead Point Lighthouse and thence in a south-westerly direction along the line of high-water mark of ordinary spring tides to the triangulation point hereinbefore described.

PART II

LIMITS OF PORT AND HARBOUR OF BRISTOL AND OF AREA OF CORPORATION'S JURISDICTION AS CONSERVANCY AUTHORITY AND AS LOCAL LIGHTHOUSE AUTHORITY.

An area bounded by an imaginary line commencing at the triangulation point near Ladye Point in the urban district of Clevedon in the county of Somerset and from thence drawn straight in a northerly direction to the point at which latitude $51^{\circ} 29' 30''$ North intersects longitude $2^{\circ} 52' 40''$ West thence straight in a north-easterly direction to the beacon on Denny Island (latitude $51^{\circ} 31' 30.264''$ North—longitude $2^{\circ} 46' 46.440''$ West) thence straight in a north-easterly direction to the point on the coast of the county of Gloucester at which high-water mark of ordinary spring tides is intersected by latitude $51^{\circ} 33' 0''$ North and thence in a south-westerly direction along the line of high-water mark of ordinary spring tides to the triangulation point hereinbefore described together with—

- (a) so much of the river Avon up to Hanham Mills as is not comprised within the said area and all other rivers or parts of rivers harbours canals pills and creeks which at the date of the passing of this Act were or are for the time being within the city which are not so comprised;
- (b) the banks of the river Avon from its mouth up to Hanham Mills and the banks of all pills and creeks communicating directly with the said river together with a space of five yards in width on each of the banks thereof immediately above high-water mark of ordinary spring tides;
- (c) the Portishead Docks of the Corporation and all docks and locks which at the date of the passing of this Act were or are for the time being within the city or abutting on any part of the said area.

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27
Customs Consolidation Act 1876 ...	39 & 40 Vict. c. 36
Merchant Shipping Act 1894 ...	57 & 58 Vict. c. 60
Bristol Corporation Act 1926 ...	16 & 17 Geo. 5. c. xcix
Local Government Act 1933 ...	23 & 24 Geo. 5. c. 51
Bristol Corporation Act 1938 ...	1 & 2 Geo. 6. c. lxxix
Bristol Corporation Act 1950 ...	14 Geo. 6. c. lx
Bristol Corporation Act 1951 ...	14 & 15 Geo. 6. c. xxxii

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ARRANGEMENT OF SECTIONS

Section

1. Short and collective titles.
2. Interpretation.
3. Alteration of limits of port and harbour of Bristol etc.
4. For protection of British Transport Commission.
5. As to customs limits of port of Bristol.
6. Publication of notice of alteration of limits of port and harbour of Bristol etc.
7. Amendment of Bristol Corporation Act 1951.
8. Repeal.
9. Crown rights.
10. Costs of Act.

SCHEDULE—

Part I—Added area.

Part II—Limits of port and harbour of Bristol and area of Corporation's jurisdiction as conservancy authority and as local lighthouse authority.